

Brackenridge Civil Group Inc

www.brackenridgecivil.com

April 30, 2007

Ms. Carol Lewis, Director of Operations, Peck-Jennings

Re: Agreement for Professional Engineering Services, Bridge Deck Rehabilitation, Peck-Jennings

Dear Ms. Lewis:

This letter, when countersigned and returned to our office, will constitute the agreement between Peck-Jennings and Brackenridge Civil Group Inc for professional engineering services in connection with the rehabilitation of the bridge deck carrying the private roadway on your property. We are pleased to have been asked. The terms are set out at some length below so that there is no question later about what is included and what is not.

Scope of Services

Our services are limited to the engineering design and to the documents that carry it. We will perform a condition survey of the existing deck and its approaches, prepare rehabilitation plans and specifications suitable for competitive bidding, and assist you during the bidding period. Construction inspection, materials testing, and any work requiring a structural analysis of the substructure are excluded, and we will quote them separately if you want them. The services included are the following:

- Condition survey of the deck, wearing surface, joints, railing, and the approach pavement on both sides, documented with field notes and photographs.
- Review of the record drawings and any prior inspection reports Peck-Jennings is able to furnish, together with our own field measurements where the record is silent.
- Rehabilitation plans and specifications covering deck repair limits, wearing surface, joint replacement, railing, drainage of the deck and the approaches, and traffic control during construction.
- A construction cost estimate at the preliminary submittal and again with the final plans.
- Assistance during the bidding period, including written responses to bidder questions and the preparation of addenda.

Approach

We will proceed in two submittals. The first is a preliminary set at approximately sixty percent completion, issued for your review and for the review of any agency having jurisdiction over the crossing. The second is the final set, sealed and issued for bidding, carrying our responses to the

comments returned on the preliminary. Comments are answered in writing, in the order they were issued, one response to each. That has been our practice for some years and it keeps the record straight when a question comes back a year later.

Field work will be scheduled around your operations. We will need access to the deck and to the underside where it can be reached safely. We will contact your maintenance staff before each visit rather than arrive unannounced.

Project Team

Pamela Warren, Project Engineer, is responsible for the design and is your day-to-day contact at this office. Jason Jordan, Design Technician, will produce the plan set and is responsible for the drawings meeting our standards. Kimberly Branch, Design Technician, will prepare the standard details and the approach grading sheets. I will review the work and seal the plans. Every drawing that leaves this office over our cover sheet has been read by me first, and that will not change on this project.

Commencement and Schedule

Services will commence on May 10, 2007, subject to our receipt of this letter countersigned. We have laid the work out over approximately four months from commencement, which allows time for your review of the preliminary submittal and for the agency review that follows it. The schedule assumes that the record drawings are furnished at the outset and that weather permits field work in the first weeks. Should either assumption fail, we will tell you promptly and in writing rather than absorb the delay quietly and explain it at the end.

Fees and Payment

Our fee for the scope described above is a fixed fee of \$114,000, which includes our ordinary reimbursable expenses: mileage within the county, plotting, and the reproduction of review sets. Reproduction of bid sets for distribution to contractors is not included and will be invoiced at our cost.

We invoice monthly for the portion of the work completed in the preceding month. Invoices are payable within thirty days of the date rendered, and balances remaining unpaid beyond that period may, at our option, bear interest at the maximum rate permitted by law. Additional services requested by Peck-Jennings and lying outside the scope above will be performed only after the scope and the fee for them have been agreed in writing. We do not begin extra work on a verbal instruction and then present the bill.

Term and Termination

This agreement takes effect on commencement and continues until we have delivered the final sealed plans and completed our assistance during the bidding period, unless terminated earlier. Either party may terminate upon seven days written notice, with or without cause. Upon termination you will pay us for services performed and expenses incurred through the effective date, and we will deliver the work in whatever state it then stands, with the understanding that plans which have not been sealed are not to be used for construction.

Confidentiality

We will hold in confidence the information Peck-Jennings furnishes to us and will not disclose it to a third party except as required to perform the work, or as required by law or by an agency having jurisdiction. This does not extend to information already public or already in our possession. We ask in turn that our drawings, specifications, and calculations be used only for this project. They are instruments of service, they remain our property, and we retain our copyright in them. You may of course keep and use copies for the operation and maintenance of the completed work.

Limitation of Liability

Brackenridge Civil Group will perform its services with the care and skill ordinarily exercised by civil engineers practicing in this locality at this time. We make no other warranty, express or implied. To the fullest extent permitted by law, the total liability of this firm and its employees to Peck-Jennings arising out of this agreement, whether in contract or in tort, shall not exceed the total fee paid to us under it. Neither party shall be liable to the other for consequential damages, including loss of use or loss of profit.

Governing Law

This agreement is governed by the laws of the state in which the project is located, without regard to its conflicts provisions. It is the entire agreement between us on this subject and supersedes any prior understanding, written or verbal. It may be amended only by a writing signed by both parties.

If the foregoing is acceptable, please sign both copies in the space provided below, retain one for your files, and return the other to this office. We will begin as soon as we have it in hand. Should any term require discussion, telephone me and we will take it up before you sign rather than after.

We appreciate the confidence Peck-Jennings has placed in this firm, and we will do the work properly.

Very truly yours,

Mark Todd

Principal Engineer

Date: April 30, 2007

Carol Lewis

Director of Operations, Peck-Jennings

Date: April 30, 2007